

POST COUNCIL MEETING

December 9, 2024 at 10:00 a.m.

Public Safety Education & Training Center
410 West 9800 South 3rd Floor Council Room
Sandy, UT 84070

Agenda

- ❖ Welcome: Chairman Kelly Sparks 00:00 – 00:56
- ❖ Approval of September 4, 2024 Minutes: Chairman Kelly Sparks
00:56 – 1:29
- ❖ Quarterly Reports: Cpt. Christian Newlin & Lt. Terry Buck 1:29 – 4:19
- ❖ 2024-2025 Quarter Three Curriculum Update: John Jacobs 4:19 – 13:30
 - Special Functions Officer/Law Enforcement Officer
- ❖ Mid-Management & Instructor Development Policy Changes:
John Jacobs 13:30 – 20:39
- ❖ Disciplinary Guidelines: Cpt. Christian Newlin 20:39 – 42:24
- ❖ Disciplinary Cases: Attorney Blithe Cravens 42:24 – 3:18:15
 - Daniel Aguilera 42:14 – 45:14
 - Matthew Alvernaz 45:18 – 51:32
 - Brian Baggs 51:42 – 1:04:54
 - Jake Barker 1:04:58 – 1:07:20
 - Elizabeth Bennett 1:07:23 – 1:10:53
 - Martin Berta 1:10:55 – 1:58:58
 - Kondrez Brown 2:00:30 – 2:06:32
 - Christian Connelly 2:19:32 – 2:29:18
 - Rhys Cooper 2:07:00 – 2:18:48
 - Casondra Earl 2:29:30 – 2:39:24
 - Chase Harris 2:39:27 – 2:41:38
 - Tyler Hogan 2:41:39 – 2:42:36
 - Owen Leifson 2:43:40 – 2:48:22
 - Landon Lowry 2:49:05 – 2:53:05
 - Grant Marshall 2:53:11 – 2:56:11
 - Steven Kyle Pace 2:56:53 – 3:08:11
 - Skyler Smith 3:08:15 – 3:11:09
 - Karen Villagrana 3:11:13 – 3:15:46

- Brody Waldram 3:15:54 – 3:18:15

❖ David Robert Bentley Reconsideration: 3:18:16 – 3:27:13

❖ Update to POST Application Fees: Director Travis Rees 3:27:54 – 3:35:46

❖ Vice Chair: Director Travis Rees 3:35:49 – 3:37:18
(Layton City PD Chief Allen Swanson)

❖ Schedule Next Meeting: 03/20/25 @ 10:00am POST HQ 3:37:20 – 3:38:20

❖ Adjourn 3:38:20 – 3:38:25

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Attendance Roster

The following POST Council members were in attendance:

Sheriff Kelly Sparks, Davis County Sheriff's Office
Aaron Jones, Proxy for Spencer Austin, Representing Utah Attorney General
Mark Zesinger, Proxy for Colonel Mike Rapich, Superintendent, Utah Highway Patrol
Jared Garcia, Proxy for Executive Director Brian Redd, Utah Department of Corrections
Chief Allen Swanson, Layton City Police Department
Chief Brian Gwilliam, Utah Chiefs of Police Association
Maile Loo, At Large
Sheriff Paul Wimmer, Utah Sheriffs Association
Jeanetta Williams, At Large
Molly Sween, PhD. Weber State University
Malena Stevens, County Council
David Petersen, At Large
Ron Anson, Utah Certified Law Enforcement Officer – non supervisory
John Crowley, UPOA Representative
Sheriff Nathan Curtis, Sevier County Sheriff's Office

The following POST Council members were excused or absent:

Mayor Troy Walker, Incumbent Mayor
Chief Darin Adams, Cedar City Police Department

POST staff present:

Travis Rees, Director
Christian Newlin, Deputy Director
Blithe Cravens, DPS Legal Counsel representing POST, Asst. Attorney General
Marcus Yockey, DPS Legal Counsel representing POST, Asst. Attorney General
Richard Jorgensen, DPS Legal Counsel representing POST Council, Asst. Attorney General
Julie Gomez, Administrative Secretary
Terry Buck, Basic Training
Dave Barnett, Investigations
James Timpson, Investigations
Austin O'Bray, Investigations
Dan Young, Investigations
Reed Motzkus, Investigations
John Jacobs, POST Technology and Curriculum
Camille Zabriskie, Investigations Technician
Chris Fielding, POST Technology and Curriculum
Chelsi Nielsen, POST Curriculum
Katie Colton, POST Curriculum

Others present:

Cedric Jenkins
Robert Lofgen
Jason Sweat

Martin Berta
JC Jensen
Paul Wimmer
Derek Dimond
Elizabeth Bennett
Ofc. Greenfield
Skyler Smith
Citori Porter
Owen Leifson
Leah Aston
Brian Baggs
Kyle Pace
Janessa Pace
Stephanie Bright
Ken Wallentine
Kate Carlson
Landon Lowry
Matt Alvernaz
Ofc. Robertson
Nathan Evershed
Sharon Connelly
Christian Connelly
Nikea Connelly
Kondrez Brown
Ashley Gregson
Rhys Cooper
Madison Cooper
Jeremy Robertson
Amairany Brown

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Actions and Voting

Approval of September 4, 2024 Minutes:

Malena Stevens: Motion to approve

Jared Garcia: 2nd

All PC members in attendance were in favor (Jeanetta Williams, Nathan Curtis and Ron Anson were not present for this vote)

Approval of proposed 3100 Career Development Courses:

Malena Stevens: Motion to approve

Allen Swanson: 2nd

All PC members in attendance were in favor (Nathan Curtis was not present for this vote)

Approval of proposed 3070 POST Instructor Development Policy:

John Crowley: Motion to approve

Brian Gwilliam: 2nd

All PC members in attendance were in favor

Approval of Disciplinary Guidelines:

Paul Wimmer: Motion to approve guidelines as presented

Malena Stevens: 2nd

All PC members in attendance were in favor

Disciplinary Cases:

Daniel Aguilera

Brian Gwilliam: Motion to accept POST's recommendation

David Petersen: 2nd

All PC members in attendance voted in favor

Matthew Alvernaz (Matthew addressed the Council. His attorney Jason Sweat was present.)

Ron Anson: Motion to reject POST recommendation and instead issue a 3-month suspension

Allen Swanson: 2nd

All PC members in attendance voted in favor

Brian Baggs (addressed the Council)

Malena Stevens: Motion to reject POST's recommendation and instead issue a 1.5-year suspension

Ron Anson: 2nd

All PC members in attendance voted in favor

Jake Barker

Paul Wimmer: Motion to accept POST recommendation

Malena Stevens: 2nd

All PC members in attendance voted in favor

Elizabeth Bennett (addressed the Council)

Allen Swanson: Motion to accept POST recommendation

Nathan Curtis: 2nd

All PC members in attendance were in favor

Martin Berta (addressed the Council along with his attorney Jason Sweat and Chief Ken Wallentine)

**Jeanetta Williams: Motion to reject POST recommendation and instead issue a 1-year suspension
beginning 11/27/23**

Allen Swanson: 2nd

Molly Sween: Substitute motion to accept POST recommendation

Paul Wimmer: 2nd

**All PC members in attendance voted in favor with the exception Jeanetta Williams and Allen Swanson
who opposed.**

Kondrez Brown (addressed the Council along with his atty Ashley Gregson)

Jared Garcia: Motion to accept POST recommendation

Jeanetta Williams: 2nd

All PC members in attendance voted in favor

Christian Connelly (Connelly addressed the Council. His atty JC Jensen was present)

Malena Stevens: Motion to accept POST recommendation

David Petersen: 2nd

All PC members in attendance voted in favor (Molly Sween was not present for this vote)

Rhys Cooper (addressed the Council along with his attorney Nathan Evershed)

Ron Alson: Motion to reject POST recommendation and instead issue a letter of caution

Allen Swanson: 2nd

**All PC members in attendance voted in favor with the exception of Curtis, Sween and Crowley who
opposed**

Casondra Earl (addressed the Council along with her attorney JC Jensen)

John Crowley: Motion to accept POST recommendation

Malena Stevens: 2nd

**All PC members in attendance voted in favor except for Jared Garcia who recused himself
(Molly Sween was not present for this vote)**

Chase Harris

Paul Wimmer: Motion to accept POST recommendation

Nathan Curtis: 2nd

**All PC members in attendance voted in favor with the exception of Jared Garcia who recused himself
(Molly Sween was not present for this vote)**

Tyler Hogan

John Crowley: Motion to accept POST recommendation

Jared Garcia: 2nd

All PC members in attendance voted in favor (Molly Sween was not present for this vote)

Owen Leifson (addressed the Council along with his atty Leah Aston)

Ron Anson: Motion to accept POST recommendation

Allen Swanson: 2nd

All PC members in attendance voted in favor (Molly Sween was not present for this vote)

Landon Lowry (addressed the Council)

John Crowley: Motion to accept POST recommendation

Mark Zesiger: 2nd

**All PC members in attendance voted in favor except for Jared Garcia who recused himself
(Molly Sween was not present for this vote)**

Grant Marshall

John Curtis: Motion to accept POST recommendation

David Petersen: 2nd

Malena Stevens: Substitute Motion to instead issue a 2-year suspension

Allen Swanson: 2nd

All PC members in attendance voted in favor (Molly Sween was not present for this vote)

Steven Kyle Pace (addressed the Council)

Paul Wimmer: Motion to reject POST recommendation and instead issue a 1.5-year suspension

Allen Swanson: 2nd

All PC members in attendance voted in favor (Molly Sween was not present for this vote)

Skyler Smith (addressed the Council)

Ron Anson: Motion to accept POST recommendation

Malena Stevens: 2nd

All PC members in attendance voted in favor (Molly Sween was not present for this vote)

Karen Villagrana (addressed the Council)

Brian Gwilliam: Motion to reject POST recommendation and instead issue a letter of caution

Allen Swanson: 2nd

All PC members in attendance voted in favor (Molly Sween was not present for this vote)

Brody Waldram

Malena Stevens: Motion to accept POST recommendation

Allen Swanson: 2nd

All PC members in attendance voted in favor (Molly Sween was not present for this vote)

David Robert Bentley Reconsideration (addressed the Council with his attorney JC Jensen)

Allen Swanson: Motion to set aside previous sanction and accept POST recommendation

Ron Anson: 2nd

All PC members in attendance voted in favor with the exception of Curtis, Petersen, Loo & Gwilliam who opposed (Molly Sween was not present for this vote)

Vice Chair:

Malena Stevens: Motion to nominate Chief Allen Swanson as Vice Chair

Paul Wimer: 2nd

All PC members in attendance voted in favor

Schedule next meeting: March 20, 2025 at 10:00 am at POST